

The core of Defendant's opposition is the Declaration of Jeff Hughes, to which the City objects. Most objections relate to foundation and hearsay. Although not all objections would be sustained, at least one objection to each and every paragraph objected to is valid. The Court therefore sustains objections to paragraphs 3(d), 5-17, and 18, as well as Figures 1-4. The Declaration contains conclusions of law, hearsay, and foundationless photographs. Although it is possible that Mr. Hughes could provide certain relevant testimony, this declaration fails entirely to support Defendants' arguments. In addition to the issues with the Declaration, it does not answer the *permitting* questions raised by the City. Defendants never actually rebut that their work was unpermitted. Without permits and inspections, it cannot be deemed compliant. (See Concord Municipal Code § 15.10.010; Cal. Code Regs., tit. 24, § 105.1 (California Building Code); Declaration of Thomas Davis.)

Merits

Defendants argue that because the City did not acknowledge their cross-complaint, the City failed to establish reasonably probability that it will prevail on the merits. In doing so, Defendants directly challenge counsel's candor. The Court finds no violations of the duty of candor. Defendants' cross-complaint does not appear relevant to the issues of this Preliminary Injunction. Indeed, Defendants themselves never explain how the cross-complaint is relevant. Its mere existence does not lessen the alleged harms. For the Court to understand why the cross-complaint—which appears at heart to be a general challenge on fee-collection by the City—affects this Preliminary Injunction, the Defendants would have to have drawn a connection, which they never do.

The City has made a *prima facie* case of code violations, substandard building conditions, irreparable harm to tenants. Defendants never directly challenge the City's arguments that the alleged violations are not and were not violations. Through the Declaration of Jeff Hughes, they have passing reference to the alleged conditions not being dangerous, but otherwise their *sole* arguments relate to timeliness, the *existence* of their cross-complaint (but never its merits) and their purported remediation. Unsupported statements regarding the conditions of the premises do not rebut the City's arguments. Defendants never even mention the illegal dumping violation.

Conclusion

At the end of the day, the City's contentions are, essentially, un rebutted. The Preliminary Injunction will be **granted**.

10. 9:00 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JAMES L. ARRASMITH, ESQ.
FILED BY:
TENTATIVE RULING:

The Motion is **granted**. Relieved counsel for Plaintiff is ordered to forward all required materials to Plaintiff or her next attorney.

11. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.
*HEARING ON MOTION IN RE: SEAL DECLARATIONS IN SUPPORT OF MOTION TO COMPEL
ARBITRATION THAT CONTAIN CONFIDENTIAL INFORMATION
FILED BY: CHU, M.D., LINDA
TENTATIVE RULING:

This Motion is unopposed. Good cause shown, it is **granted**.

12. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: CHU, M.D., LINDA
TENTATIVE RULING:

Defendants Kaiser Foundation Hospitals, Kaiser Foundation Health Plan, Inc., The Permanente Medical Group, Inc. and Linda Chu, M.D.'s motion to compel arbitration is **denied**.

Plaintiff Cylus, a minor, is suing through her guardian ad litem for medical injuries caused soon after his birth on November 10, 2017. Plaintiff's guardian ad litem is his mother Gia. Plaintiff has brought one claim for medical negligence against all the defendants. Gia was also a minor when she gave birth to Cylus.

The Kaiser Defendants and Dr. Chu have brought a motion to compel arbitration. The arbitration clause at issue here comes from an arbitration clause in the Medi-Cal agreement under which Gia and later Cylus were enrolled to receive medical care from Kaiser.

Gia was enrolled in Kaiser starting from August 1, 2012 to January 1, 2024. (Deniz dec. ¶3 and ex. C.) Cylus was enrolled in Kaiser automatically in the month he was born and the month after birth. (Deniz Dec. ¶ 4.) Cylus was then enrolled in Kaiser from March 1, 2018 to July 1, 2025. (Deniz dec. ¶ 4 and ex. D.)

Records from CCHP show two phone calls regarding Plaintiff and/or his mother's healthcare coverage. (Pierrou dec. ex. N.) The Court sustained Plaintiff's objections to these records and therefore, the Court will not consider them further.

The 2017-2018 Medi-Cal Member handbook includes an arbitration clause. (Velarde dec. ex. A at p. 92-95.) The arbitration clause requires members to use binding arbitration for malpractice claims. (Id. at 92.) The 2012-2023 Medi-Cal Member handbook includes a similar arbitration clause. (Velarde dec. ex. B. at 83-84.)

The arbitration clause at issue here covers the disputes alleged in the complaint for